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Arrangement and Placement Mandate Agreement

Reference **PC-CTR-001** · Version **0.9** DRAFT

Owner	Head of Capital Markets
Next review	12 months after adoption
Confidentiality	Internal

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APPROVAL WORKFLOW

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Drafting	Head of Capital Markets		
Review	Head of Compliance and Internal Control (RCCI)		Date and signature
Approval	Chief Executive Officer		Date and signature

REVISION HISTORY

Version	Date	Purpose	By
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REFERENCE TEXTS

Regulation No. 01/22/CEMAC/UMAC/CM/COSUMAF of 21 July 2022 Official page · cosumaf.org	Public offering, authorised intermediaries, disclosure obligations
COSUMAF General Regulation of 23 May 2023 Official text · cosumaf.org	Identity of the arrangers and the lead manager in the information memorandum (Art. 131), mandate letter in the approval (visa) application file (Art. 155), ongoing disclosure
BVMAC General Regulation (in force since April 2025) Official page · bvm-ac.org	Admission to listing, centralisation, publication of results
General Regulation of the Single Central Securities Depository Overview · droitmediasfinance.com	Book-entry registration, settlement
Regulation No. 02/24/CEMAC/UMAC/CM of 20 December 2024 Overview · droitmediasfinance.com	Due diligence on the issuer and subscribers
OHADA Uniform Act on Commercial Companies and Economic Interest Groups (AUSCGIE) Official page · ohada.org	Corporate authorisations for the issue, rights of shareholders and bondholders
OHADA Uniform Act Organising Securities (Sûretés) Official page · ohada.org	Creation of the security interests securing the loan

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OHADA Uniform Act on Arbitration Official page · ohada.org	Arbitration clause, CCJA arbitration

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Contents

Preamble

I. Purpose and definitions

Article 1 — Definitions
Article 2 — Purpose
Article 3 — Exclusivity
Article 4 — Term

II. Tasks and undertakings of the Arranger

Article 5 — Structuring phase
Article 6 — Regulatory phase
Article 7 — Placement phase
Article 8 — Nature of the placement commitment

III. Undertakings of the Issuer

Article 9 — Information and cooperation
Article 10 — Representations and warranties
Article 11 — Funds raised

IV. Remuneration and expenses

Article 12 — Commissions
Article 13 — Transaction expenses

V. Compliance

Article 14 — Confidentiality and inside information
Article 15 — Conflicts of interest
Article 16 — Anti-money laundering and counter-terrorist financing

VI. Liability and termination of the agreement

Article 17 — Liability and indemnification
Article 18 — Conditions precedent
Article 19 — Suspension and termination
Article 20 — Force majeure

VII. Final provisions

Article 21 — Governing law
Article 22 — Dispute resolution
Article 23 — Notices
Article 24 — Miscellaneous

Appendices published separately

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BETWEEN THE UNDERSIGNED:

[Issuer's corporate name], [Legal form (please specify)] [Legal form] with share capital of [Share capital], registered with the Trade and Personal Property Credit Register (RCCM) of [City of RCCM registration] under number [Issuer's RCCM number], whose registered office is at [Registered office address] ([Country of registered office]), represented by [Name of the Issuer's representative], acting in the capacity of [Capacity of the representative], duly authorised for the purposes hereof,

hereinafter "the Issuer",

AND

Purpose Capital S.A., a public limited company (société anonyme) with a board of directors, with share capital of three hundred and seventeen million five hundred thousand CFA francs (FCFA 317,500,000), a brokerage firm (société de bourse) licensed by COSUMAF under number COSUMAF-SDB-01/2026, registered with the Trade and Personal Property Credit Register (RCCM) of Yaoundé under number [RCCM number of Purpose Capital S.A.], whose registered office is at Rue Joseph Essono Balla, Elig-Essono, Yaoundé (Cameroon), represented by its Chief Executive Officer, duly authorised for the purposes hereof,

hereinafter "the Arranger" or "Purpose Capital",

hereinafter referred to together as the "Parties" and individually as a "Party".

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Preamble

Whereas the Issuer, which operates in the following sector: [Business sector], intends to raise funds on the Central African financial market on the terms set out in Article 1 and described in Appendix 1 (the "Transaction");

Whereas the regulations of the regional financial market require the issuer to appoint one or two brokerage firms responsible for supervising and carrying out the placement, the appointed brokerage firm being entitled to form a placement syndicate with other brokerage firms and credit institutions;

Whereas Purpose Capital is a brokerage firm licensed by COSUMAF and authorised to carry on arrangement, issuer advisory and securities placement activities;

Whereas the Issuer wishes to entrust Purpose Capital with a mandate to arrange and place the Transaction, which Purpose Capital accepts on the terms set out below,

IT IS HEREBY AGREED AS FOLLOWS:

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Title I — Purpose and definitions

Article 1 — Definitions

In this agreement, the terms below have the meanings given to them hereafter. They are capitalised throughout the remainder of the agreement and its appendices.

Transaction terms

- **Transaction**: the issue by way of public offeringby way of private placement of [Description of the securities] [Type of Securities] by the Issuer, the indicative features of which are set out in Appendix 1;
- **Securities**: the financial securities issued as part of the Transaction, with a unit nominal value of [Unit nominal value];
- **Transaction Amount**: [Transaction Amount];
- **Minimum Subscription Threshold**: [Minimum Subscription Threshold], being the minimum amount of subscriptions below which the Transaction is deemed not to have been completed;
- **Centralisation Account**: the account opened in the name of [Holder of the Centralisation Account] with [Institution holding the Centralisation Account], into which the funds paid by subscribers are centralised;
- **Subscription Period**: the period during which investors may subscribe for the Securities, as set in the Information Memorandum;
- **Settlement Date**: the date on which the Securities are credited to securities accounts and the funds are paid to the Issuer, as set in the Information Memorandum.

General terms

- **COSUMAF**: Commission de Surveillance du Marché Financier de l'Afrique Centrale (Central African Financial Market Supervisory Commission);
- **BVMAC**: Bourse des Valeurs Mobilières de l'Afrique Centrale (Central African Stock Exchange);
- **Central Securities Depository**: the single central securities depository of the regional financial market;
- **Information Memorandum**: the prospectus submitted to COSUMAF for approval (visa), including its supplementary and corrective notes;
- **Placement Syndicate**: the group of brokerage firms and credit institutions formed by the Arranger to place the Securities;
- **Material Adverse Event**: any event that significantly affects the financial position, business or prospects of the Issuer, or the conditions of the regional financial market.

In the event of any discrepancy between Appendix 1 and the Information Memorandum approved by COSUMAF, the latter prevails.

Article 2 — Purpose

The Issuer entrusts Purpose Capital, which accepts, with a mandate as **arranger** and **lead manager of the placement** of the Transaction. This mandate covers:

1. the financial structuring of the Transaction;
2. the preparation of the Information Memorandum and of the application file for COSUMAF approval (visa);

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3. the organisation and conduct of the placement of the Securities, either alone or within a Placement Syndicate;
4. the centralisation of subscriptions, the allocation of the Securities and the coordination of settlement; and.

> VARIANTE — ADMISSION TO LISTING ON THE BVMAC : YES
>
> 5. the preparation of the application file for admission of the Securities to listing on the BVMAC.

Article 3 — Exclusivity

> VARIANTE — EXCLUSIVITY : EXCLUSIVE MANDATE
>
> For the term of the agreement, the Issuer undertakes not to entrust any third party with an assignment having the same purpose, and refers to the Arranger any approach received from investors or intermediaries in connection with the Transaction.

> VARIANTE — EXCLUSIVITY : CO-ARRANGEMENT
>
> The Issuer appoints [Co-arranging brokerage firm] as co-arranger. The allocation of tasks and commissions between the co-arrangers is set out in an amendment signed by all three parties. The Issuer undertakes not to entrust any other third party with an assignment having the same purpose for the term of the agreement.

Article 4 — Term

The agreement takes effect on signature and expires on the earlier of the following dates: (i) delivery of the closing report provided for in Article 11; (ii) expiry of a period of [Deadline for obtaining COSUMAF approval (months)] months following its signature if COSUMAF approval (visa) has not been obtained, unless extended in writing.

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Title II — Tasks and undertakings of the Arranger

Article 5 — Structuring phase

The Arranger:

- analyses the Issuer's financing needs and proposes the structure of the Transaction (type of Securities, amount, maturity, rate or price, amortisation profile, guarantees and security, tranches);
- carries out financial due diligence on the Issuer, on the basis of the documents listed in Appendix 3;
- recommends, where appropriate, the use of a rating agency, a guarantor or a representative of the body of bondholders;
- draws up, together with the Issuer, the indicative timetable for the Transaction (Appendix 2).

Article 6 — Regulatory phase

The Arranger:

- drafts the Information Memorandum together with the Issuer and its advisers, on the basis of the information provided by the Issuer;
- prepares and files the application for COSUMAF approval (visa), follows it up and coordinates the responses to the regulator's comments;
- coordinates the parties involved: statutory auditors, legal counsel, rating agency, guarantor, Central Securities Depository and BVMAC;.

> VARIANTE — ADMISSION TO LISTING ON THE BVMAC : YES
>
> - prepares the application file for admission to listing on the BVMAC.

No information, advertising or communication document relating to the Transaction may be distributed before COSUMAF approval (visa) has been obtained and, in the case of promotional documents, without the prior validation of the Arranger.

Article 7 — Placement phase

The Arranger:

- designs the marketing strategy and organises presentations to investors;
- forms the Placement Syndicate, where applicable, and coordinates its members under a separate agreement;
- places the Securities with its clients and with targeted investors, in compliance with its information and suitability obligations;
- centralises the subscription forms and the funds in the Centralisation Account, and keeps a daily record of subscriptions;
- proposes to the Issuer the allocation rules, as set in the Information Memorandum, and applies them fairly in the event of oversubscription;
- coordinates the settlement of the Securities with the Central Securities Depository.

Article 8 — Nature of the placement commitment

The Arranger is bound by a **best-efforts obligation** (obligation de moyens). It undertakes to use its best efforts to place the Securities, without guaranteeing the amount that will be subscribed.

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Any firm underwriting or standby underwriting commitment, whether in whole or in part, may arise only from a separate agreement, approved by the Chief Executive Officer after obtaining the opinion of the RCCI and in compliance with the prudential standards applicable to the Company.

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Title III — Undertakings of the Issuer

Article 9 — Information and cooperation

The Issuer:

- provides the Arranger, within the deadlines of the timetable, with all the documents and information listed in Appendix 3, together with any information required for the proper performance of the mandate;
- warrants that this information is accurate, complete and fair, and informs the Arranger without delay of any new fact likely to alter it;
- gives the Arranger and its advisers reasonable access to its senior management, its statutory auditors and its premises;
- obtains in good time the authorisations of its corporate bodies required by the OHADA Uniform Act on Commercial Companies and Economic Interest Groups and by its articles of association;
- complies, after the Transaction, with its ongoing and periodic disclosure obligations towards COSUMAF, the BVMAC and the holders of the Securities.

Article 10 — Representations and warranties

The Issuer represents and warrants to the Arranger, on signature and on the Settlement Date:

1. that it is duly incorporated and has the capacity and authorisations required to enter into the agreement and carry out the Transaction;
2. that its financial statements for the last [Number of financial years of certified financial statements] financial years give a true and fair view of its position and have been certified by its statutory auditors;
3. that no undisclosed dispute, proceedings or commitment is likely to significantly affect the Transaction or its ability to meet its obligations under the Securities;
4. that it is up to date with its tax and social security obligations;
5. that the Information Memorandum contains no omission or inaccuracy likely to mislead investors.

The Issuer remains solely responsible for the content of the Information Memorandum vis-à-vis investors and the authorities.

Article 11 — Funds raised

The funds paid by subscribers are centralised in the Centralisation Account, which is separate from the Arranger's own accounts. They may not be used before the Settlement Date.

If the Minimum Subscription Threshold has not been reached at the close of the Subscription Period, the Transaction is cancelled. The funds are returned to subscribers free of charge within [Period for returning funds if unsuccessful (business days)] business days.

Within [Period for delivering the closing report (business days)] business days following the Settlement Date, the Arranger delivers to the Issuer a closing report setting out the amount subscribed, the breakdown of subscribers, the allocation applied and the statement of commissions.

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Title IV — Remuneration and expenses

Article 12 — Commissions

In consideration for its services, the Arranger receives the following commissions, detailed in Appendix 4:

- a flat-rate **arrangement commission** of [Arrangement commission (flat fee)], payable as to [Portion of the arrangement commission payable on signature] on signature and as to the balance upon obtaining COSUMAF approval (visa);
- a **placement commission** of [Placement commission (% of amounts subscribed and paid up)] of the amounts actually subscribed and paid up, payable on the Settlement Date;;.

VARIANTE — SUCCESS COMMISSION : YES

- a **success commission** of [Success commission rate] of the amount placed in excess of [Amount placed above which the success commission is due], payable on the Settlement Date;.

VARIANTE — ADMISSION TO LISTING ON THE BVMAC : YES

- a **listing commission** of [Listing commission (flat fee)], payable on the date of admission to listing.

The commissions are stated exclusive of taxes. Each commission is invoiced separately. They may not be set off against other sums and may not be deducted from the funds raised without the prior written consent of the Issuer.

Article 13 — Transaction expenses

The following are borne by the Issuer, whether or not advanced by the Arranger: the fees and charges of COSUMAF, the BVMAC and the Central Securities Depository; the fees of legal counsel, statutory auditors and the rating agency; printing, publication and investor presentation costs. Any expense exceeding [Advanced expenses requiring prior consent above] advanced by the Arranger is subject to the Issuer's prior consent and is reimbursed on presentation of supporting documents.

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Title V — Compliance

Article 14 — Confidentiality and inside information

Each Party keeps confidential the information received from the other under the agreement, save where disclosure is required by law or by a regulatory authority, or is necessary for the performance of the mandate.

Information relating to the Transaction constitutes inside information until it is made public. The Arranger enters the persons having access to it on an insider list and applies the rules on segregation of functions laid down in its Code of Conduct (PC-COD-001). The Issuer keeps its own insider list and provides it to the Arranger on request.

Article 15 — Conflicts of interest

Before signature, the Arranger disclosed to the Issuer the shareholding links, mandates or business relationships likely to create a conflict of interest in the performance of the mandate: [Conflicts of interest disclosed by the Arranger]. Any conflict arising during the mandate is brought to the Issuer's attention without delay.

Article 16 — Anti-money laundering and counter-terrorist financing

The Issuer provides the Arranger with the identification details of the company, its senior management and its beneficial owners required by CEMAC Regulation No. 02/24 of 20 December 2024. The Arranger applies to subscribers the due diligence measures provided for by that text and may refuse any subscription where the origin of the funds has not been substantiated. These obligations may not be waived by agreement between the Parties.

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Title VI — Liability and termination of the agreement

Article 17 — Liability and indemnification

The Arranger is liable for any fault committed in the performance of its tasks. It is not liable for the content of the information provided by the Issuer, nor for the outcome of the placement.

The Issuer indemnifies the Arranger against any loss, claim or sanction resulting from an inaccuracy or omission in the information it has provided, or from a breach of its representations and warranties.

Save in the event of gross negligence or wilful misconduct, the Arranger's liability is limited to the amount of the commissions received under the agreement.

Article 18 — Conditions precedent

The opening of the Subscription Period is subject to the fulfilment of the following conditions:

1. COSUMAF approval (visa) of the Information Memorandum having been obtained;
2. the corporate resolutions authorising the issue having been adopted;
3. the guarantees and security provided for in Appendix 1 having been created, in accordance with the OHADA Uniform Act Organising Securities;
4. the absence of any Material Adverse Event;
5. payment of the portion of the arrangement commission payable on signature.

Article 19 — Suspension and termination

The Arranger may suspend the performance of the mandate or propose the postponement of the Transaction in the event of a Material Adverse Event, after having informed the Issuer in writing.

Either Party may terminate the agreement by registered letter with acknowledgement of receipt in the event of a serious breach by the other Party that has not been remedied within [Remedy period after formal notice (days)] days following formal notice.

In the event of termination by the Issuer other than for breach by the Arranger, or of abandonment of the Transaction by the Issuer, the arrangement commission remains fully earned and the expenses incurred are reimbursed. If the Issuer carries out a transaction with the same purpose within [Arranger's protection period after termination (months)] months following termination, the placement commission is due to the Arranger as if the Arranger had placed the Transaction.

Article 20 — Force majeure

Neither Party is liable for any delay or failure to perform resulting from an event of force majeure. The Party invoking it informs the other without delay. If the impediment lasts more than [Duration of force majeure giving rise to a right of termination (days)] days, either Party may terminate the agreement without compensation, any commissions already payable remaining due.

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Title VII — Final provisions

Article 21 — Governing law

The agreement is governed by CEMAC Community law, the OHADA Uniform Acts and, for all other matters, [National law applicable on a subsidiary basis] law.

Article 22 — Dispute resolution

The Parties first seek an amicable settlement for [Duration of the amicable settlement phase (days)] days. They may have recourse to mediation by COSUMAF.

> VARIANTE — DISPUTE RESOLUTION : CCJA ARBITRATION
> Failing agreement, the dispute is settled by arbitration under the auspices of the OHADA Common Court of Justice and Arbitration (CCJA), by [Composition of the arbitral tribunal], seated in [Seat of arbitration], in the French language.

> VARIANTE — DISPUTE RESOLUTION : STATE COURTS
> Failing agreement, the dispute is submitted to the competent courts of [Competent courts of].

Article 23 — Notices

Notices are given in writing, by letter delivered against receipt, by registered letter with acknowledgement of receipt or by confirmed email, to the addresses set out at the head of this agreement or to any other address subsequently notified.

Article 24 — Miscellaneous

The agreement and its appendices constitute the entire agreement of the Parties on its subject matter. It may be amended only by a written amendment signed by both Parties. Neither Party may assign it without the written consent of the other. The invalidity of any clause does not affect the other clauses. The appendices form an integral part of the agreement.

Done at [Place of signature], on [Scheduled signature date], in [Number of original counterparts] original counterparts.

For the Issuer
[Name of the Issuer's representative], [Capacity of the representative]

For Purpose Capital S.A.
The Chief Executive Officer

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